

8. Second (or further) non-medical use

8.1. Novelty criteria for use claims and process claims containing a purpose feature

8.1.1 General issues decided before the Enlarged Board of Appeal

In general, the EPC allows both method claims and use claims, but whether an activity is claimed as a method of carrying out the activity (setting out a sequence of steps) or as the use of a thing for a stated purpose (the sequence of steps being implied) is a matter of preference. For the Enlarged Board of Appeal there is no difference of substance (G 5/83, OJ 1985, 64).

The Enlarged Board dealt in detail with the novelty of second non-medical uses in G 2/88 (OJ 1990, 93) and G 6/88 (OJ 1990, 114). The questions referred to it concerned use claims, i.e. claims defining a "use of compound X for a particular purpose", or similar wording, where the only novel feature was the purpose of that use. They were not about medical inventions but were of a general nature and primarily concerned interpretation of Art. 54(1) and (2) EPC 1973. The patentability of a second non-medical use of a product had already been recognised in principle in G 5/83 (OJ 1985, 64), which concerned the second medical use of a substance.

In the non-medical field use claims are admissible and not subject to special conditions.

In G 2/88 (OJ 1990, 93) and G 6/88 (OJ 1990, 114), the Enlarged Board had to decide whether a claim for the use of a compound for a particular non-medical purpose was novel under Art. 54 EPC 1973, having regard to a prior publication which disclosed the use of that compound for a different non-medical purpose, so that the only novel feature in the claims was the purpose for which the compound was used. The specific problem in these cases was that the previously disclosed use of the substance, although specifically stated to be for another purpose, would **inherently** comprise the use as claimed in the new application (T 59/87, OJ 1988, 347; T 208/88 of 20 July 1988).

The Enlarged Board cited T 231/85 (OJ 1989, 74), a case concerning an application for use as a fungicide of a compound already disclosed in the prior art as a growth regulator. The use according to the claimed invention and the use disclosed in the prior art were both carried out in the same way (i.e. the means of realisation was the same, namely the spraying of useful plants). The board had nevertheless concluded that the claimed invention was novel because the technical teaching in the application differed from that in the citation, and that, even if means of realisation was the same, the use was not yet known.

In G 2/88 and G 6/88, therefore, it was pointed out that a claimed invention lacked novelty unless it included **at least one essential technical feature** which distinguished it from the state of the art. A basic initial consideration, when deciding upon the novelty of a claim, was therefore to analyse it in order to determine its technical features. The Enlarged Board took the view that the proper interpretation of a claim whose wording clearly defined a new

use of a known compound would normally be such that the attaining of a new technical effect on which the new use was based was a technical feature of the claimed invention. Thus, where the particular technical effect underlying such use was described in the patent, the proper interpretation of that claim would require a **functional feature** to be implicitly contained in the claim as a technical feature – e.g. the compound actually achieved the particular effect.

The Enlarged Board thus concluded that, with respect to a claim to a new use of a known compound, such new use might reflect a newly discovered technical effect described in the patent. The attaining of such a technical effect should then be considered as a **functional technical feature** of the claim (e.g. the achievement in a particular context of that technical effect). Had that technical feature not previously been made available to the public by any of the means set out in Art. 54(2) EPC 1973, then the claimed invention was novel, even though such technical effect might have inherently taken place in the course of carrying out what had previously been made available to the public. The final decisions in cases T 59/87 (OJ 1991, 561) and T 208/88 (OJ 1992, 22) both held that the claimed use inventions were novel and inventive.

In T 1385/15, the board considered that the legal interpretation in the contested decision was not in line with G 6/88 itself, which stated, in point 8 of the Reasons, that, for a finding of lack of novelty, all the technical features of the claimed invention had to have been made publicly available together. Summing up, G 6/88 had held that the functional technical feature conferring novelty could lie in achieving a technical effect in a particular context. Thus, in the case at issue, the functional technical feature was the anti-microbial activity in the context of the claimed mechanical disinfection of articles. This feature was not disclosed in the prior art. A claim directed to a further non-medical use could not be found to lack novelty if the prior art did not disclose the claimed technical effect of the substance and the claimed use in combination.

In T 1099/16 the board held that in order to decide whether a claim to the use of a known compound for a particular purpose, based on a technical effect which is described in the patent, should be interpreted as including that technical effect as a functional technical feature according to G 2/88, it is not a requirement that the technical effect is described in the patent in a manner sufficiently clear and complete to make the actual achievement of that technical effect credible.

8.1.2 Non-therapeutic treatment of animals

In decision T 582/88 the board applied the principles set out in decision G 2/88 in slightly different circumstances. The invention's subject-matter was a method of non-therapeutic treatment of animals for the purpose of improving their milk production and comprising oral administration of a propionate-increasing amount of glycopeptide antibiotics. In the board's view the technical effect produced by the invention – in this case an improvement in milk production – was new and had to be construed as a new technical feature sufficient to make the invention novel. The claim's subject-matter was a method of non-therapeutic treatment of animals, not – as in decision G 2/88 – use of a known product to achieve a new effect (see also T 848/93).

a) Non-therapeutic application

In T 469/94, the set of claims had been worded as a second non-medical use of a product (choline or a choline derivative) to alleviate muscle fatigue. The examining division had considered that the known treatment with choline of muscle diseases and hardness was equivalent to, or even a synonym for, the treatment for reducing muscle fatigue which was claimed in the application in suit. The board concluded that the ability of choline to reduce the perception of fatigue had not been made available to the public. The first use of choline, in the therapeutic field, was known from two prior art documents. The board held that an independent invention could be based on the newly discovered effect, if such an effect led to a new technical application which was clearly distinguishable from the previous known application. The prior art documents did indeed describe the use of choline on groups of patients having manifest diseases: either epilepsy or muscle diseases and injuries. The board observed that fatigue arising from major exercise was not of a pathological nature, and that the performance itself of major exercise appeared to be quite incompatible with the situations envisaged in the prior art documents, specifically that of muscle injuries. The non-therapeutic use of choline according to the invention was therefore independent of, and distinguishable from, the known therapeutic use, because it was **directed to a distinct group of persons**. The subject-matter of the claim at issue was therefore found to be novel.

8.1.3 Applicability of G 2/88 and G 6/88 to process claims

a) General

In several decisions, the boards have taken the view that the criteria set out by the Enlarged Board in G 2/88 and G 6/88 (OJ 1990, 93 und 114) cannot readily be applied to process claims. Particularly in the more recent case law, they have found that those criteria can be applied only to claims directed to the use of a substance for achieving an effect and cannot be extended to claims directed to a process for producing a product characterised by process steps wherein the purpose of carrying out said process steps is indicated in the claim (T 1049/99, T 1343/04, T 1179/07, T 304/08, T 2215/08, T 1039/09, T 1140/09). The case law has constantly interpreted G 2/88 in a restrictive manner, i.e. to mean that only claims relating to the use of a known compound for a particular purpose, based on a technical effect described in the patent, should be interpreted as including that technical effect as a functional technical feature, provided that such technical feature has not previously been made available to the public (T 1822/12).

b) Different treatment of use and process claims

In T 1049/99 the board took the view that the criteria set out in decisions G 2/88 and G 6/88 (OJ 1990, 93 und 114) could not simply be transferred to process claims. The board pointed out that, according to those decisions, a new purpose related to a new technical effect could render novel the claimed use of a product already known, even though the means of realisation making it possible to achieve the new purpose was identical to the known means of realisation, given that a use claim in reality defined the use of a particular physical entity to achieve an effect. The board distinguished this situation from that of a

process claim which defined the use of a particular physical entity to achieve a product and, therefore, fell within the scope of Art. 64(2) EPC 1973. An extension of the criteria set out in the decisions of the Enlarged Board referred to above would result in protection of a product obtained by a process already known on the basis of the new effect discovered in the process itself, even though that process was identical to that already known (see also T 910/98).

In T 1179/07 the board found that the central findings in G 2/88 and G 6/88 concerned a claim to the use of a known compound for a previously unknown purpose. No findings were made in those decisions with respect to process claims for a specific use. Although the "use of a compound" could be regarded as a process including the compound use as a procedural step, a use claim could not normally be treated as equivalent to a process claim because Art. 64(2) EPC was not, as a rule, applicable to use claims. According to the Enlarged Board in G 2/88, Art. 64(2) EPC was generally not directed to patents whose claimed subject-matter was the use of a process to achieve an effect (this normally being the subject of a use claim) but rather to European patents whose claimed technical subject-matter was a process of manufacture of a product. Despite the indicated purpose, the process claimed in this case was clearly aimed at manufacturing a product: a procedural treatment of the source product resulted in an end product differing from the source product. Were the board to extend the findings made in G 2/88 and G 6/88 to the granted process claim, this would confer fresh protection under Art. 64(2) EPC on the product resulting from granted process claim 1 even though that product was already known from D1 and obtained by precisely the same process as that described in D1. It could not, however, be in keeping with the object and purpose of Art. 64(2) EPC to extend its protection to a product obtained by a known process. It was, in particular, this difference in the treatment of process and use claims in the context of Art. 64(2) EPC which, in the board's view, left it no scope to extend the principles laid down by the Enlarged Board in G 2/88 and G 6/88 with regard to the use of a known compound for a previously unknown purpose to process claims (see also T 684/02, T 910/98 and T 1049/99).

In T 304/08 the board noted that G 6/88 and G 2/88 (OJ 1990, 93) contained no finding concerning claims to a method (or process, these two terms being used synonymously in this decision) wherein the purpose of carrying out the method was defined in the claim. However, G 2/88 stated that there were basically two different types of claim, namely a claim to a physical entity (e.g. product, apparatus) and a claim to a physical activity (e.g. method, process, use) and that the technical features of a claim to an activity were the physical steps which defined such activity. Decision G 2/88 further distinguished, in the context of defining the extent of protection conferred under Art. 64(2) EPC, between claims which defined the use of a particular physical entity to achieve an "effect" and the use to produce a "product" and concluded that, providing that the use claim in reality defined the use of a substance to achieve an effect and did not define such a use to produce a product, the use claim was not a process claim within the meaning of Art. 64(2) EPC. Thus, the criteria set out by the Enlarged Board of Appeal in the aforementioned decisions could only be applied to claims directed exclusively to the use of a substance for achieving an effect.

In T.1092/01 the board held that the rationale of decision G.2/88 was applicable to a claim directed to a known process by which a previously unknown technical effect (conversion of lutein to its isomeric form zeaxanthin) was achieved. It considered that the relevant question to be answered was whether the skilled person would use the claimed process for a purpose different from that for which the processes in the prior art had been used. In the board's judgment, in view of its starting material and its procedural steps, the claimed process could only serve the same final purpose of production of pigments for food industry. The disclosure of the purpose did not open the way to a new activity and occurred inherently when carrying out the process in the prior art. Hence the board concluded that the statement of such an effect could not confer novelty on the claimed process (see T.1039/09). Observing that the board in T.1092/01 had not given any detailed reasons for the above-mentioned finding (in point 17 of the decision) that the rationale of G.2/88 could also be applied to a process claim, the board in T.1179/07 likewise held that stating the purpose in the process claim could not establish novelty.

c) Interpretation of process claims

Where a process claim begins with wording such as "method for remelting galvanic layers", the part "for remelting" is not to be understood as meaning that the process is merely suitable for remelting such layers, but rather as a functional feature concerning the remelting of galvanic layers and, hence, defining one of the steps in the claimed process (see T.848/93 below). Such a case has to be distinguished, however, from those where the claim is directed to a process aimed at a particular purpose and comprises physical steps resulting in the production of a product (i.e. the claim is in fact directed towards the production of a product).

In T.848/93 the application claimed a process which differed from the prior art only in its use (remelting instead of vapour phase soldering). The board considered the process feature "remelting galvanic layers" to be a functional technical feature which established novelty. If a claim concerned e.g. an apparatus which differed from a known apparatus only as regards the use indicated, then the use was not an apparatus feature. This meant that the two pieces of apparatus were identical in terms of structure. If the known apparatus was suitable for the claimed use, the application lacked novelty. If the claim was directed to an object, a substance or a composition, the same applied. If however the claim was for a process, the situation was not comparable. In such a case, the use feature was a functional process feature comparable in category with the other features (steps) of the process.

See also T.1399/16, with further references.

d) Use of a known process for a particular purpose

The board in T.461/07 observed that it was settled case law that there was no basis for regarding the purpose of carrying out a process as having the effect of a functional technical feature distinguishing the process from others carried out using identical features but for a different purpose (T.210/93 and T.1343/04).